

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
AMANDA GREENBERG,

Plaintiff,

-against-

MARKO SIKIRIC,

Defendant.
-----X

INDEX NO.: 507175/15

VERIFIED
AMENDED COMPLAINT

Plaintiff, by her attorneys, **MARK E. SEITELMAN LAW OFFICES, P.C.**, complaining of the defendant, respectfully alleges upon information and belief:

1. Plaintiff resides at 100 Maspeth Avenue, Apt. 5E, Brooklyn, New York 11211.
2. Defendant resides at 21-69 Shore Boulevard, Long Island City, New York 11105.
3. At all times herein mentioned, Defendant was the owner of a motor vehicle with New York license plate number GKB4599.
4. At all times herein mentioned, Defendant operated the aforementioned motor vehicle.
5. At all times herein mentioned, the intersection of Morgan Avenue and Stagg Street, Brooklyn, New York, was a public roadway and thoroughfare.
6. On July 30, 2014, Defendant was operating the aforesaid motor vehicle at the aforementioned location.
7. On July 30, 2014, the motor vehicle owned and operated by Defendant came into contact with the Plaintiff, a lawful bicyclist, at the aforementioned location.
8. As a result of the aforesaid contact, Plaintiff was

injured.

9. The aforesaid occurrence was caused wholly and solely by reason of the negligence, carelessness and recklessness of the Defendant, without any fault or negligence on the part of the Plaintiff contributing thereto.

10. Defendant was negligent, careless and reckless in the ownership, operation, management, maintenance, supervision, use and control of the aforesaid vehicle and the Defendant was otherwise negligent, careless and reckless under the circumstances then and there prevailing.

11. Plaintiff sustained serious injuries as defined by §5102(d) of the Insurance Law of the State of New York.

12. Plaintiff sustained serious injury and economic loss greater than basic economic loss as defined by §5104 of the Insurance Law of the State of New York.

13. Plaintiff is not seeking to recover any damages for which Plaintiff has been reimbursed by no-fault insurance and/or for which no-fault insurance is obligated to reimburse Plaintiff. Plaintiff is seeking to recover only those damages not recoverable through no-fault insurance under the facts and circumstances in this action.

14. This action falls within one or more of the exceptions set forth in CPLR §1602.

15. By reason of the foregoing, Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendant

herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
August 11, 2015

Yours, etc.,

A handwritten signature in dark ink, appearing to read "Mark E. Seitelman", written over a horizontal line.

MARK E. SEITELMAN LAW OFFICES, P.C.
Attorneys for Plaintiff
111 Broadway, 9th Floor
New York, NY 10006
(212) 962-2626

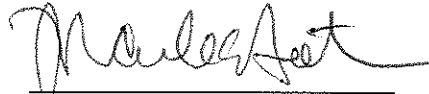
ATTORNEY'S VERIFICATION

MARK E. SEITELMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at MARK E. SEITELMAN LAW OFFICES, P.C., attorneys of record for plaintiff. I have read the annexed Amended Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not plaintiff(s) is that plaintiff(s) is/are not presently in the county wherein the attorneys for the plaintiff(s) maintain their offices.

Dated: New York, New York
August 11, 2015


MARK E. SEITELMAN